

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings  
Hon. Mark Bacciarini  
Courtroom 10

627 W. 21<sup>st</sup> Street, Merced

Tuesday, June 16, 2026  
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
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| 22CV-00117 | Miranda Gray, et al. vs Dominick Rufo, et al. |
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Motion for New Trial

**The motion for a new trial is DENIED.**

**After a thorough review of the record the court finds there was no irregularity in the proceedings, there was no error in law, and the evidence was sufficient to support granting the motion for summary judgment.**

**Plaintiff further alleges that the failure to address the negligent hiring, supervision, and retention cause of action in its tentative ruling requires a new trial. The court does not find this persuasive.**

**The evidence supports the finding that the third-party criminal acts were an unforeseeable superseding event. Regardless of whether there was negligent hiring, supervision, or retention, there being no prior similar acts means the third-party criminal acts were unforeseeable under the circumstances in this matter. In short, Defendant owed no duty to Plaintiffs under any theory of liability.**

**Accordingly, the motion for new trial is denied.**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Restraining Order  
Hon. Jennifer O Trimble  
Courtroom 12

1159 G Street, Los Banos

Tuesday, June 16, 2026  
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

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| Case No. | Title / Description |
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| 26CV-00265 | Meghan Souza vs. John Leonard |
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Order to Show Cause Re: Restraining Order Continued

**Appearance required.**